

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUPP048916: SALVADOR RIZO vs MIGUEL MAGDALENO INDIVIDUALLY
AND IN HIS CAPACITY AS TRUSTEE OF THE MAGDALENO LIVING TRUST**

07/13/2026 in Department 21

**Motion to Compel Plaintiff Salvador Rizo to Serve Further Responses to Request for
Production, Set One and Request for Monetary Sanctions**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Cross-Complainant Miguel Magdaleno’s Motion to Compel Plaintiff Salvador Rizo to Serve Further Responses to Request for Production, Set One (*Opposed*)

Tentative Ruling:

The parties have failed to comply with CCP §2016.040. The Court CONTINUES the hearing on this motion to **August 24, 2026 at 8:30 am**. The parties are ordered to meet and confer regarding each issue in dispute either in person, by video conference, or over the telephone by no later than July 24, 2026. The parties are to file a JOINT Declaration with the Court detailing the meet and confer efforts that have been completed in compliance with CCP §2016.040, and stating which discovery items remain in dispute. This JOINT Declaration is to be filed with the Court no later than **August 14, 2026**.

Notice to be given by counsel for Cross-Complainant Miguel Magdaleno within 2 court days.